

24STCV07570 24STCV07570

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-27

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Case Number: 24STCV07570 Hearing Date: August 27, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

JAVIER LOPEZ,

Plaintiff,

vs.

FORD MOTOR COMPANY, et al.,

Defendants.

Case No.:

24STCV07570

Hearing Date:

August 27, 2026

Hearing Time: 8:30 a.m.

[TENTATIVE] ORDER RE:

PLAINTIFF JAVIER LOPEZ'S MOTION FOR
ATTORNEY FEES, COSTS AND EXPENSES

Background

On

March 26, 2024, Plaintiff Javier Lopez ("Plaintiff") filed this lemon law action
against Defendant Ford Motor

Company ("Ford") and Habermel Ford dba Jim Burke Ford Lincoln, alleging three
causes of action for (1) violation of Civil Code section 1793.2(d),
(2) breach of implied warranty of merchantability, and (3) negligent repair.

On

September 12, 2026, Plaintiff signed a settlement offer from Ford.

On

December 2, 2025, the Court dismissed this action without prejudice, retaining
jurisdiction under Code of Civil Procedure section
664.6 to enforce the settlement. (Minute Order, 12/2/25.)

Plaintiff

now moves for an award of attorney fees, costs, and expenses. Ford opposes. Plaintiff
replied.

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Evidentiary

Objections

Previously, the Court

ordered the parties to meet and confer regarding the evidentiary objections

Ford interposed. The Court rules on Ford's remaining evidentiary objections as
follows:

Objection Nos. 33-35, 37-42,
49, 51-60: sustained

Legal
Standard

“Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter, [Sale Warranties §§ 1792 et. seq.,] or under an implied or express warranty or service contract may bring an action for the recovery of damages.” (Civ. Code, § 1794, subd. (a).)

“If the buyer prevails in an action under [Civil Code section 1794], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) The award of attorney fees is mandatory, to “provide[] injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” ((Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105, 1111-1112 [“By providing for a mandatory award of attorney fees...”].))

To calculate fees, the lodestar method is used. “[T]he court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work,” plus any reasonable fees a party incurred in filing the motion. ((Marshall v. Webster (2020) 54 Cal.App.5th 275, 285.) This is “an objective, nonarbitrary, and easy to administer calculation of attorney fees” because it fixes the fees “at the fair market value for the legal services provided.” ((Reynolds v. Ford Motor Co., supra, 47 Cal.App.5th at p. 1117.) This “approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary.” (Ibid.)

“[T]he court’s discretion in awarding attorney fees is ... to be exercised so as to fully compensate

counsel for the prevailing party for services reasonably provided to his or her client.” ((Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 395.) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys’ efforts are unorganized or duplicative. ((Serrano v. Unruh (1982) 32 Cal.3d 621, 635, fn. 21.) “[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Bd. of Trustees of California State Univ., supra, at p. 396.)

Discussion

Plaintiff requests a total attorney fee award of \$29,474.40, comprising of attorney fees in the amount of \$24,562.00 and a lodestar multiplier of 1.2 in the amount of \$4,912.40. Plaintiff also requests costs in the amount of \$4,391.20.

A. Costs

Regarding costs, the Court previously denied Ford’s motion to strike or tax Plaintiff’s requested costs on May 7, 2026. The Court found the requested costs in the amount of \$4,391.20 reasonable. Accordingly, the Court grants the request.

B. Plaintiff’s

Requested Hourly Rates are Reasonable

Plaintiff’s motion asserts that “[r]ather than merely making a general assertion that there are too many attorneys in this case, Plaintiff invites FMC to point out any instances in the billing that are excessive or unnecessarily duplicative time based on Plaintiff’s staffing methods; there are none. Knight Law Group’s attorneys specialize in certain stages of litigation, such as written discovery, depositions, responding to pleading challenges, and trial. For example, some attorneys focus on assisting Plaintiff’s responses to discovery, while other attorneys are specialists in analyzing Defendant’s discovery responses and moving to compel when needed. Some attorneys have extensive experience taking the deposition of manufacturer’s PMQ witnesses, others are uniquely qualified for expert depositions, while still others focus on trial work. The net result

of this is that the attorneys need significantly less time to prepare examination outlines, legal research, or other preparatory tasks. This is supported by the modest billing entries for the tasks that regularly appear in Song-Beverly Act cases.” (Mot., 7:28-8:11.)

Eight attorneys and one law clerk worked on this case. (Kirnos Decl., Ex. A.) Lead counsel's declaration in support outlines each attorney's qualifications and provides a breakdown of the time each attorney spent and their hourly rates. (Id. at ¶ 28, Ex. A, p. 8.) The amounts range from \$295 to \$600. (Ibid.)

Ford contends that “Plaintiff's counsel, Knight Law Group, LLP, boldly suggests that this Court should award hourly rates of up to \$600.00 per hour for work on this formulaic lemon law lawsuit in which Plaintiff's counsel included nine (9) different attorney timekeepers. That is excessive in the extreme for a case that largely involved boilerplate drafting litigation practices. Generally speaking, the trial judge is in the best position to value the hourly rates for the attorneys appearing in his or her courtroom.” (Opp., 6:5-10, emphasis omitted.) Ford seeks a blended rate of \$350 per hour as a reasonable rate, pursuant to *Mikhaeilpoor v. BMW of North America, LLC* (2020) 48 Cal.App.5th 240, 256. (See id. [“the trial court's award of a \$350 hourly billable rate is supported by substantial evidence.”].) The Court notes that, here, the weighted average hourly total is \$432.43. Although higher than the \$350 Ford recommends, the trial court in that case heard the motion on July 31, 2018. Taking into account that more than eight years have passed since the decision Ford uses to support its requested amount, the Court finds the requested fee amount reasonable. This averaged amount appears lower than fee requests for lemon law actions this Court has seen before, and when accounting for inflation, cost of living increases, and general wage increases over the past eight years, it is not unreasonable for a figure that once was \$350 to be \$432.43. Moreover, Plaintiff cites *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 473, a case where the trial court awarded fees at a rate of \$575 for work performed in 2014 and 2015. Accordingly, the Court finds the requested hourly rates reasonable.

C. Plaintiff's

Billing is Not Excessive

Plaintiff's counsel includes verified time entries to demonstrate the billed amounts. (Kirnos Decl., Ex. A.) Plaintiff's

counsel's declaration explains that "Knight Law Group's billing policy requires attorneys to have recorded their time on a weekly basis. This policy is designed to ensure that billing entries are entered either contemporaneously with each dated entry or near in time to the work performed. Time billing entries presented here may have been edited from their original description for accuracy, clarity and/or to correct typographical errors. I have instructed the attorney drafting this motion to personally review all time entries for purposes of removing or reducing any time deemed excessive, duplicative, or otherwise unreasonable under the circumstance, or they are labeled as a 'no charge', as identified by the 'N/C' in the invoice. In addition, billers who performed discrete tasks for minimal time may be removed or not charged to reduce the number of billers for whom the firm seeks reimbursement of attorney fees." (Kirnos Decl., ¶ 22.) The Court finds that the time entries appear reasonable.

Ford contends that

Plaintiff's counsel requests that the Court should not award duplicative and unnecessary fees, that the vague entries are improper, and that Plaintiff should not be awarded attorney rates for administrative tasks. However, Ford bears the burden to demonstrate the issues with the billed amounts. Ford does not clearly point out these issues in the timesheets, and the Court finds that the time entries appear reasonable. As noted by Plaintiff's counsel, the billed entries are audited, and the Court sees that there are various entries where Plaintiff opted not to receive fees. Moreover, the entries do not appear vague, because the Court can determine what each task is billed for. Lastly, there does not appear to be any clear administrative tasks.

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D.

Lodestar Multiplier

Plaintiff

"also requests a lodestar multiplier of 1.2 in the amount of \$4,912.40." (Kirnos Decl., ¶ 2.)

While

the lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "¿(1) the

novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award,” and (4) the success achieved. (Serrano v.

Priest (1977) 20 Cal.3d

25, 49.)

However,

the court must not consider extraordinary skill and the other Serrano factors to the extent these are already included within the lodestar. (Ketchum

v. Moses (2001)

24 Cal.4th 1122, 1138-1139.) “[A] trial court should award a

multiplier for exceptional representation only when the quality of

representation far exceeds the quality of representation that would have been

provided by an attorney of comparable skill and experience billing at the

hourly rate used in the lodestar calculation. Otherwise, the fee award will

result in unfair double counting and be unreasonable.” (Id. at p. 1139.)

Here, Plaintiff

asserts that a 1.2 lodestar multiplier is appropriate.

Plaintiff contends that “[t]hroughout the litigation, there always existed the possibility Plaintiff would not prevail. The risk was compounded by the fact that Plaintiff’s attorneys advanced all litigation costs and expenses without reimbursement. Thus, if Plaintiff did not prevail, their attorneys would have suffered a substantial loss of uncompensated attorney hours and thousands of dollars in out-of-pocket expenses.” (Mot., 12:13-16.) However, other

factors do not support the application of a multiplier. There is

no indication that this case was complex or presented challenging

legal issues, particularly considering that Plaintiff’s counsel

specializes in these types of cases. In addition, the Court does not find

that Plaintiff demonstrated that the success achieved

by Plaintiff’s counsel was exceptional. Accordingly, the

Court declines to apply Plaintiff’s requested multiplier to the

lodestar amount.

Conclusion

Based

on the foregoing, Plaintiff’s request for attorney fees and costs is GRANTED in the total amount of \$28,953.20, comprising \$24,562.00 for attorney fees and \$4,391.20 for

costs.

Plaintiff

is ordered to provide notice of this Order.

DATED: August 27, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior
Court